

Ganesh Kumar v. State of U.P.

Allahabad High Court · Division Bench · 27 May 2022 · Writ-C No. 10933 of 2022 · **Writ disposed; 6.8 objection with stay of recovery**

HEADNOTE

Without examining merits, the Allahabad High Court disposed of a writ challenging a theft-related recovery certificate of Rs 1,24,837, granting liberty to file an objection under paragraph 6.8 of the U.P. Electricity Supply Code, 2005, directing time-bound disposal after hearing, and staying coercive action for eight weeks or until the objection is decided, whichever is earlier.

FACTUAL SUMMARY

Ganesh Kumar challenged a recovery certificate dated 20 January 2022 (R.C. Serial No. 13382) issued by respondent no. 3 for realisation of Rs 1,24,837, and also sought a mandamus directing inquiry and action against the person alleged to have committed electricity theft. Counsel for respondent no. 4, the power distribution corporation, stated on instructions that the petitioner could file an objection against the impugned demand, which would be decided in accordance with law within a time-bound period.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.8

objection to theft-related recovery

HOLDING

Without expressing any opinion on merits, a writ challenging a theft-related recovery certificate is disposed of with liberty to submit an objection under paragraph 6.8 of the U.P. Electricity Supply Code, 2005 before the distribution licensee within four weeks; if filed in time, the objection shall be decided in accordance with law within the next four weeks after a reasonable opportunity of hearing, and no coercive action shall be taken on the impugned demand for eight weeks or till disposal of the objection, whichever is earlier. ¶ 1

PRINCIPLE TAGS

assessment-6.8-alternate-remedy The Court declined to examine the recovery certificate on merits and relegated the consumer to the statutory objection under paragraph 6.8 of the Supply Code. ¶ 1

pending-6.8bi-objection-directed-for-reasoned-disposal-with-stay The licensee was directed to decide a paragraph 6.8 objection, if filed within four weeks, in accordance with law after hearing, with coercive recovery stayed for eight weeks or until disposal, whichever is earlier. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE RECOVERY CERTIFICATE AND THE UNDERLYING THEFT DEMAND

The Court expressly declined to express any opinion on the merits. ¶ 1

NOT DECIDED — MANDAMUS FOR INQUIRY AGAINST THE ALLEGED ACTUAL OFFENDER

Prayer B was not examined. ¶ 1